

FILED
 UNITED STATES DISTRICT COURT, DISTRICT OF MASSACHUSETTS
 04-12051-MEL
 2004 SEP 23 P 2:33

ZORAIDA RIVERA,
 Plaintiff

vs.

UNITED STATES OF AMERICA,
 Defendant

COMPLAINT

U.S. DISTRICT COURT
 DISTRICT OF MASS.

RECEIPT # 58882
 AMOUNT \$ 50
 SUMMONS ISSUED 10/5
 LOCAL RULE 4.1
 WAIVER FORM
 MCF ISSUED
 BY DPTY. CLK. [Signature]
 DATE 9/23/04

MAGISTRATE JUDGE [Signature]

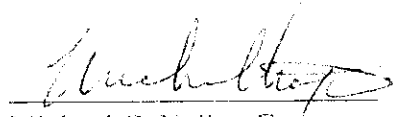
1. This action arises under the Federal Tort Claims Act, 28 USC §1271, et seq., and jurisdiction is found under the provisions of 28 USC §1346(b).
2. Plaintiff, Zoraida Rivera, resides in Lowell, Middlesex County, Massachusetts and the cause of action asserted hereinafter occurred in Lowell, Middlesex County, Massachusetts.
3. On October 17, 2002, plaintiff was a passenger in a motor vehicle being operated by one Hector Gutierrez, traveling on Andover Street in Lowell, at the intersection with High Street.
4. At the same time and place, Marcos Chavez had been driving on Andover Street in the direction opposite that of the auto in which plaintiff was riding.
5. As the Gutierrez auto was traveling in the intersection of Andover and High Streets, Mr. Chavez negligently drove his vehicle, making a left turn from Andover Street onto High Street, striking the Gutierrez automobile.
6. At the time of said accident, Mr. Chavez was working within the scope and course of his employment with the United States Department of Justice, Drug Enforcement Administration.
7. The United States government is responsible to the extent that any negligence on the part of Mr. Chavez caused injury to plaintiff, and if the defendant were a private person it would be liable to the plaintiff in accordance with the law of Massachusetts.
8. As a result of the accident described above, plaintiff sustained injuries, incurred medical expenses in excess of \$9,000.00, endured pain and suffering, has sustained a loss of function of her arm and continues to have some functional limitation consequent to injury to her shoulder, and has been otherwise injured.

9. Plaintiff has properly presented her claim under the Federal Tort Claims Act to the agency by which Mr. Chavez was employed, and the claim was finally denied by letter dated May 3, 2004.

WHEREFORE, plaintiff demands judgment against the defendant in the amount of \$250,000.00.

Respectfully submitted,

Dated: 9/22/04


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